

current safety policy → strengths & challenges

TOPIC 7

LEGAL AND INSTITUTIONAL FRAMEWORK FOR OHS

OSHA 2007
→ Mandates workplace safety, spell employer duties

- policy should be concise, easily understood, known by all employees and approved by highest level of management.

- ^{policy} may be ~~express~~ expressed as institutional mission and vision

- Policy should define & duties and responsibilities

Things that are in policy:

- policy document should be printed in a language/medium readily understood by workers

- policy statement should be clearly formulated and designed to fit particular organization

- should be circulated so that every employ has opportunity to become familiar to it

- should be prominently display to all & work place to act as a constant reminder to all.

- should be kept alive by regular review

- spell out workers duties and rights

key components

1. Enforcing compliance via inspection & promoting and training along side ~~and~~ compensating injured through legislation

- Legal framework include:

i) Legislative act e.g OSH act

ii) Constitutional rights

- Act 93 sec 1 a ... ensure safe environment

iii) Compensation legislation work injury benefit act 2007 provide mechanism

iv) General duties legal framework

v) Institutional framework

vi) Regulatory authorities

vii) Inspectorate services → govt inspectors to inspect work places

viii) Workplace safety committees.

- employer is required to form safety committee monitor compliance and promote health at local level

Mechanism put in place for compliance and enforcement

1) Audit and inspection
- Require regular inspection to ensure adherence to safety standards

2) Improvement notices -
are legal notices served to force corrective action within a specific time frame

3) Penalties and sanctions

- When there is non compliance it can lead to fine, imprisonment

4) Education and training
- promote a safety culture throughout the work place

1) OSHA 2007

1) Strengths
weakness
challenges
in implementation

WIBA => workplace injury benefit Act

Functions of OSHS

Other agencies and institution in Kenya that are related to occupational health safety

1) National Council for occupational safety and health (NACOSH)

Function

Advice the cabinet secretary on OSH policy and approve expenditure from OHS fund

ii) Ministry of Labour
Handles general labour inspection industrial relation and enforcement of employment act

iii) National social security
Ins

- Inspection department
- verify compliance with social contribution payment

iv) Ministry of health
- Responsible for public health eg environmental health, disease surveillance

v) KMTC

offers a post basic diploma training in OHS.